

Dear
NDIS/NDIA
Fair Work Act
CSC.GOV.AU



Australian Government
Department of Social Services

Selected organisation

Personal access requests

NDIS quality and safeguarding

View employee details

Employee's details

First name: Richard

Last name: Wilson

Email address: r.wilson@ndis.gov.au

Work phone: 0894887600

Mobile phone:

Provider's details

Provider legal name: NDISA, Inc (NDISA NDISA)

Provider trading name: NDISA, Inc (NDISA NDISA)

ABN: 123456789

Address: 123 Main St (NDISA NDISA NDISA)

Address status:

Access status: Active

Quota ref: NDISA NDISA

3. Required user roles

Choose a role and user role from the options below.

Approved Quality Officer

As an employee of an Audit organisation, this person has the same responsibility of an Auditor role and must be responsible for assessing and submitting an assessment on a registration application, and providing an audit recommendation.

Author

As an employee of an Audit organisation, this person is responsible for assessing and submitting an assessment on a registration application.

Authorised Reporting Officer

Responsible for assessing a behaviour support plan and submitting monthly reports on the use of an authorised restrictive practice.

Behaviour Support Practitioner

Responsible for developing and lodging a behaviour support plan for a person with disability. This role should be requested for all behaviour support plans.

Behaviour Support Practitioner Admin

Provides day-to-day support to a Behaviour Support Practitioner to enter a behaviour support plan.

Behaviour Support Reporting Admin

Provides day-to-day support to an Authorised Reporting Officer to enter reports on the use of an authorised restrictive practice.

Monitor Screening Officer

Responsible for managing the provider's monitor.

Practitioner Profile

Is not provided to an NDIS Behaviour Support Practitioner to allow them to manage practitioners should contact be made. If they require a contact, this role should be requested for all behaviour support plans.

From: Dr Rich Mclean rich@richmclean.com.au 
Subject: Re: GT47 - Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive] ATT Amie in Claims
Date: 20 May 2021 at 7:31 pm
To: Advisory_Service@worksafe.vic.gov.au, **Ndia. Review** ndia.review@ndis.gov.au, foi@ndis.gov.au, FOI (NDIS Commission)
FOI@ndiscommission.gov.au



Dear Cassandra, and NDIA, and WorkSafe,

This is a question for work safe and an FOI request for NDIS/NIA/NDIS Commission.

CommCare are refusing to acknowledge I am covered by them. (Amy),

However, they gave me a claim number and then a link to ask me to fill in a form, including details of the psychological injury.

If I am approved by CommCare, does this mean I am covered by 'WorkCover'? Or 'WorkSafe'? As such?

What do you suggest I do now, coming from you at work safe who oversee workcover, whom I have made recordings of from saying 'every worker is covered', if I am rejected by Commcare?

The NDIA pay my wage, therefore they are my employer, wouldn't you agree? I have an advance payment below from NDIA. (During COVID with a registration number).

Here is proof: they gave me an advance payment in COVID that I did not request.

It confirms my employer framed by the COVID crisis - is the NDIA.

Thanks in advance for your response.

Please also see my FOI below

Dear Pascal, (NDIA), and also to the NDIS,

Thanks for your call.

In my FOI please release:

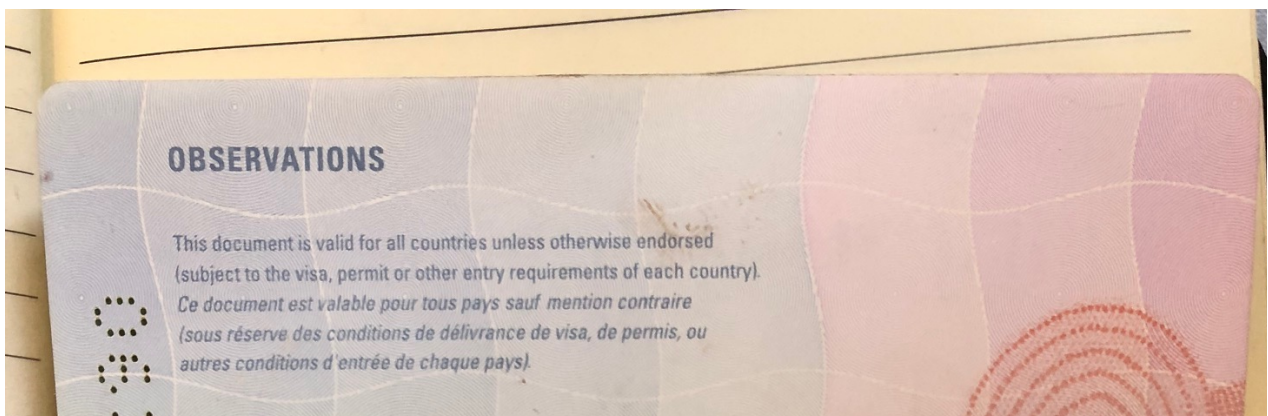
- 1) Documents relate to why someone in NDIS/NDIA told a plan manager I do not have permission to charge my 'therapy other' rate, ie who was it? Why?
- 2) One of my clients hand funding review, I have been involved in. Why was I removed from further reviews?
- 3) Why does NDIS/NDIS not accept I am 'employed' by them for compliance purposes when I have an advance payment from NDIA for covid?
- 4) Whether NDIA thinks I have qualifications for work I do, if not why not?
- 5) Documents mention my name/business www.richmclean.com.au and complaints made about me or my role?
- 6) My former partner worked for ASIO and promised to 'ruin' me he promised an threatened to call NDIS / NDIA to deregister me-any record of this?
- 7) Any thing related to my work or my person (Both NDIS and NDIA please).
- 8) if insolvency and incarceration exonerates me from working for the NDIS? Or NDIA? Or being registered?

Thanks, please forward to NDIA as well for an FOI request to them.

I will await your receipt and feedback.

Kindly

Rich



View employee details

Employee's details

First name : Richard

Last name : McLean

Email address : rich@richmclean.com.au

Work phone : 0418391532

Mobile phone :

Provider's details

Provider legal name : MCLEAN, RICHARD WILLIAM

Provider trading name :

ABN : 72066207615

Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate

Address : 2 MCCUBBIN STREET FOOTSCRAY VICTORIA 3011

Access status

Access Status : Active

Stable Id : NM622036

3. Required user role(s) *

Choose at least one user role from the options below.

☐ **Approved Quality Auditor**

An employee of an Audit organisation, this person has the same responsibility of an 'Auditor' role and more. They are responsible for witnessing and submitting an assessment on a registration application, and providing an audit recommendation.

☐ **Auditor**

An employee of an Audit organisation, this person is responsible for witnessing and submitting an assessment on a registration application.

☐ **Authorised Reporting Officer**

Responsible for accepting a behaviour support plan and submitting monthly reports on the use of an authorised restrictive practice.

☐ **Behaviour Support Practitioner**

Responsible for developing and lodging a behaviour support plan for a person with disability. This
Responsible for developing and lodging a behaviour support plan for a person with disability. This

☐ **Behaviour Support Practitioner Admin**

Provides data entry support to a Behaviour Support Practitioner to enter a behaviour support plan in the portal.

☐ **Behaviour Support Reporting Admin**

Provides data entry support to an Authorised Reporting Officer by entering reports on the use of an authorised restrictive practice.

☐ **Worker Screening Officer**

Responsible for managing the provider's workers.

☐ **Practitioner Profile**

A role provided to an NDIS Behaviour Support Practitioner to allow them to manage their practitioner profile. A 'behaviour support practitioner' role should be requested to lodge behaviour support plans in the portal.

1. I am going to issue you with court order subpoena & summons

I am offering you the chance for the NDIA to work withwww.richmclean.com.au and myself, Dr Rich McLean.;

This is in order to consider whether there is another way permitted by the NDIS Act for the protected Agency information to be disclosed or to discuss if the information can lawfully be disclosed to me before I issue my court order subpoena or summons.

I am both a registered provider, and a participant of the NDIS/A as an employee and a worker.

2. I have emailed the Minister directly relating to a claim of conspiracy with no effect

3. The Enterprise agreement

National Disability Insurance Agency Enterprise Agreement 2020-2023

I wish to state that under the enterprise agreement, I should have had certain legal obligations assured to me and processes followed with my tenure at the NDIA/A as an approved therapeutic support

4. The Fair Work Act is deemed law and it oversees the agreement

The NDIA Enterprise agreement 2020-23 is made under the **Fair Work Act 2009**.

5. I am a Public Service Employee

For the purposes of NDIS/A I am a PSA

'Who are Australian public service employees?

The Australian Public Service formally comprises **all Australian Government departments and agencies where staff members are or can be employed under the *Public Service Act 1999***. At June 2013, there were 167,257 APS employees, down from 168,580 APS employees in June 2012.

I am eligible as a PSA because I am an 'Australian citizen at the time of application. have as a minimum an Australian recognised bachelor degree in the last four years and can provide evidence of your qualification prior to commencing.'

The NDIA has a page dedicated to the PSA definitions on the federal website and in that existing implicitly condones employing PSA's as workers and employers.

It also has a dedicated NDIA page meaning if you are an employee of the NDIA then you are automatically classified as a PSA

ADMINISTRATIVE APPEALS TRIBUNAL ACT 1975

INDEX TO SECTION 37 DOCUMENTS

APPLICANT: Richard William McLean
RESPONDENT: COMCARE
AAT REFERENCE: 2021/7478
RESPONDENT'S REFERENCE: KW1:DI:20153964

T	Page	Date	Description
T1	1-5	14.10.2021	Application for Review of Decision
T2	6	15.11.2021	Section 37 Statement
T3	7-12	26.04.2021	Claim for Workers' Compensation –
T4	13-18	27.05.2021	Claim for Workers' Compensation – (Unsigned)
T5	19-22	30.06.2019	Letter from NDIS to the Applicant
T6	23-26	01.07.2019	NDIS Certificate of Registration
T7	27-33	09.03.2021	Mercy Health discharge summary
T8	34-45	04.05.2021 26.04.2021 Various	Email from the Applicant to Comcare a) Workers' compensation claim (Reproduced at T3) b) Workers' compensation medical certificates
T9	46-47	10.05.2021	Email chain between NDIS and Comcare
T10	48-50	11.05.2021	Email from NDIS to Comcare
T11	51-53	13.05.2021	Email chain between the Applicant and Comcare
T12	54-55	13.05.2021	Email from Comcare to the Applicant
T13	56-64	13.05.2021 13.05.2021 13.05.2021	Email from the Applicant to Comcare a) Email from NDIS attaching: i) Tax invoice for COVID Advance Payment b) Email from Comcare edited by Applicant
T14	65-66	14.05.2021	Email from the Applicant to NDIS and Comcare

pcomcare_20153964_006.docx

From: Dr Rich Mclean rich@richmclean.com.au 
Subject: I challenge you



Date: 21 March 2021 at 3:17 pm

To: Support support@pokiespins.com, vip@pokiespins.com, VIP AllSpinsWin vip@allspinswin.com, Andrea Peters vip@goldenpokies.com, support@goldenpokies.com, PokieSpins Documents documents@pokiespins.com, GoldenPokies Documents documents@goldenpokies.com, support@allspinswin.com, documents@allspinswin, vip@pokiemate.com, support@pokiemate.com, documents@pokiemate.com, Chelsea Brown VIP@wagerbeat.com, Support support@wagerbeat.com, WagerBeat Documents documents@wagerbeat.com, support@houseofpokies.com, documents@houseofpokies.com, vip@pokieplace.com, documents@pokieplace.com, Support Pokies Parlour support@pokiesparlour.com, support@ppkiesparlour.com, documents@pokiesparlour.com, vip@pokiez.com, support@pokiez.com, documents@pokiez.com

Cc: Rich McLean rich@richmclean.com.au

ATT:

Federal Police, Australian Financial Complaints Authority, Bendigo Bank, Westpac bank, commonwealth bank, ANZ bank, Go MasterCard, Financial Ombudsman,

REASON FOR EMAIL: Crime9s0 have been committed against me by these illegal casino's and I have the evidence below to hold them to account.

OUTCOME SOUGHT: I want my money back, all of it.

REASONS: Outlined below. In addition to that I am homeless and have been confined to a psychiatric unit recently with a co morbidity of gambling.

MY SITUATION: I am a person with a disability and framed by COVID and trying to survive fell victim to these unethical casino's and robbed of everything - I was committed to an institution and I am on the verge of homelessness - gambling is a disease - and I was seeking support for it and it was related to a sexual abuse case (my own) which was rudely rejected by the court and the magistrate.

Marginalised person is me: I have been through a stressful and damaging time that lasted years very publicly known led me to be committed to a psychiatric institution, with a diagnosis of Adjustment Disorder. Framed by COVID I stupidly turned to gambling: and I am robbing in all of these places unless they refund all of my deposits.

OTHERWISE:

I am instructing all my banks to refund every deposit made to overseas casino's dating back until 2018.

For the attention of the following casino's that operate coherently:

www.pokiespins.com, www.allspinswin.com, www.goldenpokies.com, www.pokiespins.com, www.pokiemate.com, www.wagerbeat.com, www.pokiesplace.com, www.pokiesplace.com, www.pokiespins.com, www.pokiez.com, www.pokiespins.com, and more:

I have CC'd this to all of my banks fraud departments in reference to the cards I utilised to spend and waste money at your casino's-when there was no guarantee of winning, the 'service' or 'purchase' never ever fit the 'product' - as expected as a place I had the chance of winning money - as proven below,

Bluntly, your operations are fraudulent and I can prove it. I have below and I have CC'd it to all of my banks fraud teams.

As per my credit and debit cards, as the 'purchase' (gambling) does not match the 'product' (the chance to win suitably and legally), my many many many deposits will be refunded by my banks, ANZ bank, Commonwealth bank, Westpac Bank, Go MasterCard, and others and I have CC'd them all into this email so they can witness this incorrigible deceitful gaming scam which has robbed me of hundreds of thousands of dollars.

That link for clarity is here:

<https://www.apsjobs.gov.au/s/graduate-portal/department/national-disability-insurance-agency-MCLDFESMUA AZDGNA76DQLYSRLUBQ>

A Definition of Federal Public Servant

I am defined as a **Federal public service employee**

Employment in the federal public service must be with a department or branch that **forms part of the public service**.

This is the NDIS/A, and it is a statutory authority under the portfolio of the (?) minister.

((((It also includes employment in any of the boards, commissions or agencies that form part of the public service for pension purposes. 24 Sept 2021))))))

In regards to leave entitlements or cessation of employment:

I am required to have insurance as per the enterprise agreement.

This did not occur.

By law I as a worker/employee was supposed to be paid superannuation into my Government super account that regrettably did not occur and under the 'agreement', it is against the law.

Where this Government PSA superannuation is or should have been held since 2018 is:

www.csc.gov.au which is the Commonwealth Superannuation Corporation

My final entitlements if I leave work

My final entitlements are determined by the ***Fair Work Act 2009*** .

The **industrial instrument you are employed under**. This will usually be your **agency's enterprise agreement**, or your contract of employment.

This document exists in the Enterprise Agreement 2020-2023 for the National Disability Insurance Agency that is overseen by The Fair Work Commission.

As a PSA I have a code of conduct under the PSA

The NDIA has a code of conduct over my status as a PSA

Here:

<https://www.ndis.gov.au/about-us/policies/aps-code-conduct-procedures>

A casual employee is someone who is engaged on an irregular or intermittent basis under section 22(2)(c) of the PS Act

The PS act is the Public Service Act, 1999.

So what does it say about my eligibility to be deemed an employee on the NDIS official website?

What is a 'worker' or 'employee' under the NDIS quality and safeguards Commission, the NDIA/S?

The NDIS Quality and Safeguards Commission is an independent government body that will work to improve the quality and safety of NDIS supports and services, and strengthen the skills and knowledge of workers, providers and participants across Australia. The NDIS Commission is now operating in all states and territories.

Who is a worker?

Under the NDIS Commission, a worker is anyone who is employed or otherwise engaged to provide NDIS supports and services to people with disability. Workers can be paid or unpaid, and can be people who are self-employed, employees, contractors, consultants, and volunteers.

My Business & qualifications

As I ran my business through the vehicle of my webpage www.richmclean.com.au (which is also my ABN signature name),

I am an allied health professional and registered therapeutic support for marginalised people on the NDIS and from other sectors as an artist-life-coach.

I have completed a creative led Masters of Education and also a Creative Doctorate in an arts based research, and have been an exhibiting artist for over thirty years, an artist for two major newspapers, and additionally have had a public advocacy role in speaking for marginalised people with mental health issues in the local state and national community, representing tens of thousands of people

I have also been awarded a human rights award for an autobiography on my experience with what was a troubling time in my early 20's.

I am certainly more than qualified for the role.

According to the perms and definitions of the NDIA/S I am an employee and worker

So according to that statutory Government authority, I am an employee and or a worker.

The PSSap is the Public Sector Superannuation Accumulation Plan - is the NDIA's default superannuation fund for new employees who commenced after 1 July 2005.

As I commenced in 2018, this fund was legitimately have supposed to occur for me regarding my role for my work in the public sector.

SUPERANNUATION UNDER THE ENTERPRISE AGREEMENT BOUND TO NDIS BY FAIR WORK

3.25 The Commission will make compulsory employer contributions as required by the applicable legislation and fund requirements.

Note: I was never paid super nor was I signed up to this as an eligible employee as defined above

3.26 The Commission's default superannuation fund is the Public Sector Superannuation Accumulation Plan (PSSap).

Note I was never made a member of this superannuation fund

I wish for my payments to a fund be paid retrospectively

The Commission will provide employer superannuation to members of the PSSap of no less than 15.4% of an employee's fortnightly contribution salary.

We need to re-instate that superannuation plan in retrospect.

In regards to the enterprise agreement it was law for me to hold an account with the PSSap from when I commenced my role in 2018. It should have been incumbent on the NDIA/S for me to have superannuation and a plan.

Can you please acknowledge this point and what will be now done retrospectively to address this issue?

I should have the default fund appropriately re-engaged and atoned financially to when I started by employment - from the date of my contract with the NDIA.

This date was: (2018)

If you cannot action this immediately, please provide legislation that states you are exempt from implementing it retrospectively

attributing this legal action in regards to super and to my work.

The enterprise agreement states that this superannuation is compulsory for me to have as a person actively engaged for years working for the NDIS/A .

It is absolutely necessary that I be made aware why did the error occur - and who was responsible for that omission of my superannuation fund?

Supported Wage System (SWS)

Also, I was interested to read about The Governments [Supported Wage System \(SWS\)](#)

The Commonwealth Government promotes employment for people who cannot work at full award wages because of a disability, as documented in the Supported Wage System Handbook

Whilst this was not applicable to me - I was only able to manage reduced hours in my capacity as a therapeutic support.

As a person who has had difficulties in the past and via some opinions not neuro - typical, throughout my work and career, I would like this to be re-visited for the term of my employment consistent with legislation and any benefits that may be applied in retrospect.

In regards to this, the NDIS/A wanted much of its workforce to be consumer consultants, or seen to as had or had a disability

What then, are the provisions of income protection and units of TPD in the super fund I should have been in please?

Is there any grounds for discrimination I terms of units of cover for death and TPD, or indeed, what is the policy around a person perceived to have had a disability, and any legislation that may be seen as discriminative?

Cessation of work under the agreement.

I was interested to read about eligibility criteria for section B in terms of cessation of work because of a workplace issue, illness, or complexity, or abuse.

Eligibility criteria to be covered (See appendix).

- B.1 You will be covered by this appendix if you are unable to perform the range of duties to the competence level required within the class for which you are engaged under this Agreement, because of the effects of a disability on the productive capacity and you meet the impairment criteria for receipt of a disability support

pension.

I left work on the 22nd of jan. I had previously been on a disability support pension.

I am now on a disability support pension again.

I understand also that there are provisions for your level of qualification, and additionally if you cannot work because an issue deemed to be able to be covered (which mine is), I would be paid a % of my yearly income depending on and proportionate to my level of impairment.

On 22/01/2021 I became ill from work because of complex reasons, including an oppressive Government conspiracy that was desecrating my life, destroying my voice and my human rights and capacity to complain and get traction with places of complaint and authorities who could intervene on these issues.

None would do so without prejudice nor stigma and discrimination.

I was no longer physically able to attend to see my two year long client, who had extremely high needs.

This clients issues were further complicated because I had illegitimately and without reason been rudely rejected two VOCAT cases - one in which I was involved in a violent affray - and video existed of the entire incident that would exonerate me as anywhere near a principal offender.

However when I found out I asked for my FOI through OAIC and they redacted the footage which would have exonerated me.

The second was my own child sexual abuse case for which I made a complaint to VOCAT. It took three years and five lawyers to be heard from the Geelong magistrates court through agent www.yourlawyer.com.au

The agent/lawyer briefly told me on the phone my case 'fell over' without providing any evidence whatsoever so I took it up with the agency that investigates lawyers but they had www.yourlawyer.com.au 's back.

Further, I had begged of evidence that the Magistrate provide me a recording of the hearing. It arrived the day I was facing other conspiratorial issues stemming from government agencies that all rendered my injustice, gaslighting, neglect and blacklisting.

As I spent over a year and a half acknowledging in my mind snippets of my clients story of tragic child rape and incest - I eventually convinced him and he agreed we would take it to VOCAT and I prepared a statement that we both read and he signed with a justice of the peace.

In that moment a comity of issues came about - one which was the helplessness of the non validation of my childhood sexual abuse after they delayed and deferred my outcome for years and then blacklisted all my complaints covered up by the agency that investigates such illegal actions. Two was that I was horrendously abused by my client which I have recorded evidence of. I also have the evidence of the VOCAT case that I narrated for my high needs extremely marginalised client. A slight measure was the triggering of my own non validated sexual abuse case was consistently being triggered the closer my VOCAT determination got and then I was powerless to act because it was delayed out of time.

The final blow was that had I kept going with my clients advocacy - I was now convinced that for some reason unclear to me, that I was in fact the victim of an elaborate government conspiracy to deny me justice.

I was distressed with this growing sense of a movement of systemic oppression.

In time - it did reveal itself as indeed a movement designed to main frame blame and desecrate me financially with already ingrained prejudices I society and additionally that I was a person easy to exploit.

The agents of oppression at that time visible or invisible were as follows:

AFCA had without regard for the oversight in legislation that ASIC oversee with, delayed and deferred my legitimate determinations that would have equalled well over a million dollars.

HCF were my insurer for income assist

They both acted in conspiracy to delay and deny me prosperity in full knowledge I was due to be compensated and that they had an obligation to pay me.

In conjunction with that, I had lost two VOCAT cases with a corrupted magistrate and also my lawyer www.yourlawyer.com.au which acted illegally in never giving me an outcome.

Holding their back was the government agency that was responsible for investigating the responsibilities of the legal process - and I have that evidence too.

Invisibly, my former partner was out of the picture - but he had threatened a hit man on me and blackmailed me with jail if I went after a legal and amicable separation of assets from our 5 + year relationship in which we were ended in 2015.

He had allowed me to waste my nest egg on him earning next to nothing whilst he actually worked for ASIO as a project manager. It was a highly respected role that required the sharpest of intelligence and advance planning - which he was a master at. He escaped the relationship by leaving me homeless - with his dying dog - with over a million dollars in super and Telstra shares and other assets, and he also stole my car and whitewoods.

I took provisions in order to reduce stress and risk with that situation as well.

I was not available because of a parallel magistrates decision linked to my validation of child sexual abuse, and that I had been unsuccessful in various VOCAT cases which I believe were actually a case of systemic oppression from Government agencies.

I also could not function in the emotional and critical thinking capacity for my role, and be the best support I could be for my important client.

In addition I was tasked with collecting in my mind, across a year and a half - the narrative of my clients sexual abuse and documented it for the purposes of a VOCAT case.

I had an extremely rational paranoia, that there was a systemic government oppression that had overtaken my life - because I had complained about a GP.

I was rejected incorrectly with prejudice to claim on my income assist - because as a person with a public profile of someone who has a Lakeland active in the public arena, they prejudiced my situation as pre existing

In conjunction with that I had been battling with AFCA who kept delaying and deferring important and well overdue determinations that they held, and it has become crystal clear over time that their agenda was to delay and deny an outcome in order to hasten my desperation and my lack of prosperity.

They did this - I believe because I was vulnerable to suicide and the public vilification victimisation prejudice and stigma attached to my very exploitable persona easily persuaded many people and agencies to demonise me and my life.

My insurer and AFCA were very well aware I was bereft of any prosperity because I had begged them to help me and see the error of their ways and afford me some dignity to live, afford food, and even simple things like pay rent and access healthcare.

It has now been nearly a year and I am actually banned from contacting HCF - and they keep referring me to AFCA,

However AFCA is quite a predictably vexed issue - where Tim Gos and Peter Fisher quite unbelievably, have threatened to immediately void all my cases I contact the in any way.

This is called:

Blackmail.

I have them on the record from evidence from Bendigo Bank as as cancelling an issue, saying I did not turn up.

That is an in credibly easy determination - because they have already paid me a good percentage of the issue at hand.

When you simply apply the same methodology as already has been proven - the rest of the money gets paid (about \$20000)

In this way - Bendigo Bank were then embroiled in this 'conspiracy to pervert the course of justice', with HCF and AFCA and looking back - I had been framed by many many other agencies without my knowledge.

So I was on leave from work unable to attend, and utterly financially desecrated consciously with maliciousness and purposeful as to render me bereft of prosperity.

Prior, I had been on a disability pension for over a decade - and when I finished my doctorate I was guaranteed that at any time over a two year period if I cannot work - I will be reserved a place on the DSP.

Centrelink however, joined the chorus, and I was getting \$255 a week when my rent was \$380 a week, indeed, I could not even afford to exist.

I became distressed via the persecution.

I attempted,pted to then acknowledge something I had found stressful and risky - a legal issue whereby I would have gained \$500000 from my former partner via a lawful separation of assets.

My former partner had escaped our relationship where we were engaged with a million dollars in super, shares, and property - he threatened a hit man on me and blackmailed me with jail if I came anywhere near him.

At the time - he 'anonymously' wrote to me and further, as he always did, swore to ruin my life.

He was reporting me to the NDIS/A

My family were susceptible to their own prejudices and seeing me distressed for no fault of my own, they institutionalised me.

Whilst I was there, I very nearly died by suicide.

The FOI from the hospital states that it was a 'lethal injury', and a 'fatal' attempt.

It is recorded in the clinical notes from the FOI's that I was found unresponsive, having totally bled out with 'no observable pulse'.

If I were not freakishly accidentally discovered and rushed out lifeless in a code black - and revived with a refilling of my bodies blood and basic fluid, and dramatic oxygen pumps refilling my lungs - I painfully and eventually gained consciousness.

What killed me was not mental illness.

I will prove beyond reasonable doubt that it was the sum of prejudice stigma shame the non validation via a magistrate of my sexual abuse where I was the child victim, and a decades long consistent systemic government oppression that was conscious malicious and a sustained attack my very person as an individual.

This is because unknown to me at the time, I had been framed as an extortionist regarding the complaint with the GP by his lawyer and hung out to dry for it.

However I have not done anything wrong, I am a free man.

I wish to say too - that my former partner is a man of formidable intelligence but a sociopaths and narcissistic tendencies.

He was also an employee of ASIO who embezzled 1.2 million dollars from a home he made selling cocaine into an offshore tax haven and got caught.

Rich people, protect rich people - and he avoided jail with a slap on the wrist fine.

He also admitted other heinous crimes such as being present at a murder before I had met him.

Just recently I have found all his documents, super, and other things hidden in a folder on my computer, and in it was photos of me when I was with my former partner in 2005 or 6, detailing his pathological perseverance and interest in me, as we did not start living together until 2010.

I believe that someone has it in for me and attacking me via proxy.

It has been suggested to me for a long time - that I am less of a financial burden if I kill myself than if I got justice for my many many justice and human rights abuses - too many to mention here.

Thats why I made

www.killhim.info

A recent addition to the website is a letter from the attorney general.

You know - Michaelia Cash.

Under her portfolio, she has oversight of:

Comcare
AHRC
AAT

AFCA
APRA
AFSA

And many others.

So with my workers compensation additionally added to the bow of people not acknowledging me financially - you would expect that when I was rejected by work safe in helping me with my appeal at Comcare...

That work safe would help - but they didnt

Paul Fowler from Comcare was the one who rejected me on a technicality from the SRC act

Isn't it a coincidence how Paul Fowler was the old boss - and a lawyer - at work safe?

I call that corruption.

Plain and simple.

So- Paul rejected me and I had to appeal to Comcare - but by now I am squatting and finding it hard to think and remember al, the time due to the suicide attempt that was a conspiracy to ureder nothing less

Labour and contracting agreements from APH.gov.au

Labour hire and contracting arrangements

12.5

The utilisation of labour contractors and consultants by the Government has increased markedly in recent years. The CPSU estimates that there are as many as 20 000 labour hire workers across the APS, and that as many as one in five people are engaged either via these arrangements or as contractors.¹⁷

12.6

As highlighted in Chapter 11, across a sample of 24 agencies, spending on contractors has more than doubled over the period between 2012–13 and 2016–17. Furthermore, information sourced from AusTender indicated that the total value of consultant contracts across the APS increased from \$386 million to \$545 million during the same four year period.¹⁸

External workers and the performance of core public service functions

12.7

It was argued during the inquiry that labour hire and consultants are being utilised to undertake core public sector work. For example, the National Secretary of the CPSU, Ms Melissa Donnelly, cited a survey the CPSU had recently undertaken of its membership. She submitted that almost 90 per cent of respondents said that labour hire was being used for the normal ongoing work of the agency. She highlighted that this included compliance work at Services Australia and claims processing at the Department of Veterans' Affairs—not seasonal work, but core APS work from the CPSU's point of view.¹⁹

12.8

Responding to questions regarding this concern, the General Manager for People at Services Australia, Mr Michael Nelson, stated the following:

*What we [Services Australia] try to do is to focus on having ongoing APS employees undertaking ongoing work. The primary purpose of labour hire and other forms of employment is to be more demand focused ... for projects, for increasing customer requirements and that sort of thing. The nature of labour hire work should be more short-term. Sometimes that does drag on for a period of time, but it's generally because the demand that we're seeing or experiencing has been longer than we expected when we initially made the determination to engage them for that work.*²⁰

12.9

Notwithstanding the above, Ms Donnelly contended that the increased expenditure on external workers, as highlighted by the CPSU's internal analysis and the 2019 Independent Review of the Australian Public Service, showed that the labour hire workforce is undertaking 'core APS functions', and not just being utilised for seasonal fluctuations.²¹

12.10

During his evidence to the committee, the Acting Managing Director of ManpowerGroup, Mr David Bruch, was questioned about the types of roles he provides workers for, and whether these roles were ongoing or temporary in nature. He told the committee that:

*Overall, the majority of the roles we are providing to the federal government are specialist roles ... On average, monthly attrition in our on-hire workforce is between 10 and 20 per cent. That would imply that most of our on-hire workers turn over within a year.*²²

12.11

The Managing Director of Hays Specialist Recruitment (Hays), Mr Nick Deligiannis, provided a breakdown of the tenure of the approximately 2900 temporary workers that Hays had deployed to the APS during September 2021. This is shown in **Table 12.1** below.

Table 12.1: Hays' temporary worker tenure with the APS

Tenure	Percentage of workers
Less than six months	54 per cent
Six to twelve months	17 per cent
One year	17 per cent
Two years	8.0 per cent
Three years	2.4 per cent
Four years	< 1 per cent
Five years and over	< 1 per cent

Source: Mr Nick Deligiannis, Managing Director, Hays, answers to questions on notice, 27 August 2021 (received 17 September 2021).

The availability of whole-of-government data

12.12

During the inquiry, it became clear that there was no person or entity tasked with collecting whole-of-government data regarding the utilisation of external workers, such as those engaged through labour hire arrangements.

12.13

The Acting Deputy Australian Public Service Commissioner, Mr Patrick Hetherington, noted that the Australian Public Service Commission's (APSC) remit only covers people employed under the *Public Service Act 1999* and in public service agencies through its survey work. Given this, he stated that 'we [the APSC] don't actually capture data on the number of labour hire employees in the Public Service'.²³

12.14

Mr Hetherington also conveyed that, from the APSC's perspective, the workforce mix within agencies, including the percentage of labour hire they utilise, is the responsibility of the head of the respective agency. He submitted that these individuals are 'best placed to determine what the appropriate mix of their workforce should be based on their business outcomes'.²⁴

12.15

Upon being asked whether anyone in the Government knew the proportion of the public service workforce engaged through labour hire, the Deputy Secretary of Budget and Financial Reporting within the Department of Finance, Mr Matt Yannopoulos, stated: *It is true that there's no central data holding of labour hire information. There is reporting through the AusTender platform of labour hire contracts, but there is no ... aggregated set*

of data that we possess in [the Department of] Finance—or anywhere else in government, to my knowledge.²⁵

The average staffing level cap

12.16

Evidence provided to the committee during the inquiry indicated that the Government's average staffing level (ASL) cap has increased the use of labour hire arrangements across the public service.

12.17

The CPSU was highly critical of the Government's decision to implement an ASL cap, noting that it is regularly informed by managers across a number of Government agencies that the ASL cap is the reason that labour hire workers have been engaged.²⁶ In its submission to the inquiry, it stated the following:

*The policy makes government appear smaller, but at the expense of everything that makes government valuable to communities. Agencies are still required to deliver what the government wants and the community needs.*²⁷

*It's not a limit on how much work is done, or how much money is spent, or even how many people can do work on behalf of the government—it's only a limit on secure employment.*²⁸

12.18

Although highlighting that there are other drivers and reasons for the growth in labour hire arrangements across the public service, Mr Yannopoulos acknowledged that the ASL cap has also been a contributing factor. Specifically, when asked whether the ASL cap would contribute to the growth in labour hire arrangements to meet the increasing demand for Government services, he stated:

*I think that's possibly a fair characterisation. Agencies have needed to manage within a government set ASL cap. If they are needing to get extra workers, then they will use labour hire or direct contracting to support that. But I don't think it's the only reason.*²⁹

Cant provide assurance of government or ATO workers entitlements

12.47

Although noting that the ATO requires all its labour hire providers to ensure that they're paying their employees in accordance with the relevant award, when asked whether the ATO's outsourced labour hire workers receive the same pay and conditions as its internal employees who are doing the same work, Mr Chapman said:

*There are varying and different conditions around leave and all sorts of elements of the employment contract, so I can't give you an assurance as to all the individual employment arrangements of the different providers. I can't give you that assurance, I'm afraid.*⁷⁶

And yet many staff who identify with a disability, employed as APS or labour hire, continue to experience added pressures not experienced by other staff – particularly in relation to Assistive

Technology (AT) which staff who identify with having a disability require to perform critical work for the NDIA. As this staff member notes:

Because people are having issues with assistive technology and everything is taking longer and they're not able to reach their KPI's consistently, some employees have had their KPI's adjusted but most haven't ... as a result they are consistently stressing, panicking, coming into work worried about the next time they had to go to their team leader and explain that their assistive tech isn't working and worried about the repercussions because they're expected to perform.

The emotional toll this takes on staff with disabilities is serious and is systemic:

I've had discussions with many employees with disability and when they break down in tears with you it's heartbreaking to see. What management is not realising, is this [is] significantly impacting people's self-esteem and self-worth and it's becoming a big issue.

DISABILITY 15% NDIA workers and discrimination

As mentioned earlier, the agency aims to have at least 15% of its workforce identifying with having a disability. Unfortunately, NDIA workers with a disability feel that the agency's ICT services is one of many areas in which the organisation continues to fail them. As a staff member with a disability remarks:

The NDIA continuously talks about people with a disability being the centre of everything we do, meaning our participants. They carry on about being the employer of choice of people with a disability, but this is not true ... There's rampant discrimination that takes place and it's horrible to see. If the whole purpose of this agency is to improve the lives of Australians with a disability, does that not include working at the NDIA as well?

INQUIRY INTO THE CURRENT CAPABILITY OF THE AUSTRALIAN PUBLIC SERVICE (APS)

The current capability of the Australian Public Service (APS) Submission 18

CPSU SUBMISSION – NDIA & NDIS QSC

When dealing with ICT, the issues for staff who identify with a disability in the NDIA are particularly pronounced, as noted by an APS planner:

The biggest issues for people [with a] disability is assistive technology, probably more impacts people with visual impairments but can affect people across the board. First part of the issue is getting the technology we need, but then our CRM system doesn't work well with assistive technology ... I know one Planner who uses assistive technology and [management] adjusted her KPI's because

of all the delays and problems with our IT, but she's regularly in tears because essentially she feels incompetent not able to do the work ... Like everyone else she wants to progress and have a career, but because we don't have the tools ... it's really challenging and her mental health ...

More broadly however, ICT services are still not perceived positively:

There's not a lot of ICT support in general ... There is a team you can contact as part of shared services but they're not directly part of the NDIA.

ENTERPRISE AGREEMENT AND NDIA

Bargaining policy and NDIA capability

In November 2019 the NDIA released its notice of employee representational rights (NERR), initiating the bargaining process for the agency's second stand-alone Enterprise Agreement. Being one of the youngest agencies in the APS, the NDIA has never experienced bargaining outside of the parameters imposed by the Coalition Government's APS Workplace Bargaining Policy. Unfortunately for NDIA, that bargaining process was severely hampered by the range of restrictions that characterise the policy. In particular, casual conversion clauses and other pathways facilitated by Enterprise Agreements for staff to transition from labour hire to APS, once a possibility for workers in insecure working conditions in the public service, are now prohibited by this policy. This entrenches the increasing disparity between conditions for labour hire and APS staff in the agency.

One of the strengths of the enterprise bargaining system in Australia was the opportunity it provided for employers and staff to negotiate around innovation and positive change with strong staff engagement. For a new agency like NDIA this could be especially useful. However the Coalition Government's bargaining policy actively works against this, with its prohibition on anything that can be considered an enhancement – essentially anything new. Combined with the scaling back of consultative rights and refusal to allow policy and procedural arrangements to be part of an agreement, this denies staff and the agency the advantages that could come from genuine, good faith bargaining.

INQUIRY INTO THE CURRENT CAPABILITY OF THE AUSTRALIAN PUBLIC SERVICE (APS) 10

The current capability of the Australian Public Service (APS) Submission 18

CPSU SUBMISSION – NDIA & NDIS QSC

WHAT THE FWC will do

- The FWC may deal with the dispute in two stages:

a.

b.

i. ii.

the FWC will first attempt to resolve the dispute as it considers appropriate, including by mediation, conciliation, expressing an opinion or making a recommendation; and if the FWC is unable to resolve the dispute at the first stage, the FWC may then:

arbitrate the dispute; and
make a determination that is binding on the parties.

Note: If the FWC arbitrates the dispute, it may also use the powers that are available to it under the FWA. A decision that the FWC makes when arbitrating a dispute is a decision for the purposes of Division 3 of Part 5.1 of the FWA. Therefore, an appeal may be made against the decision.

SALARY ADVANCEMENT

Salary advancement for non-ongoing employees

5.10. If you are a non-ongoing employee with continuous employment of more than 12 months in duration, and you are not at the top of your salary range, you are eligible for salary advancement. This will be assessed on the anniversary of your commencement at your classification and pay point subject to:

- having a performance plan in place that continues to apply into the following assessment period;
- having completed at least one performance plan in your current assessment period;
- effectively meeting or exceeding requirements as specified within the performance framework;
- performance of duties for at least six months within your 12 month assessment period; and
- not being subject to a current performance improvement process.

Payment of salary

5.11. Your fortnightly rate of pay will be ascertained by applying the following formula:
Fortnightly pay = annual salary x 12 ÷ 313

IN REGARDS TO CASUAL LOADING

Casual loading

5.19. If you are non-ongoing and engaged for duties that are irregular or intermittent (casual employee) you will receive a loading of 20 per cent of salary in lieu of paid leave entitlements except long service leave, and public holidays not rostered to work.

REMUNERATION AND SUPERANNUATION

Part 5 – Remuneration

Salary increases

- 5.1. Salary increases over the life of the Agreement:
 - 2.0 per cent on commencement;
 - 2.0 per cent 12 months after commencement; and
 - 2.0 per cent 24 months after commencement.
- 5.2. No qualifying period applies in relation to eligibility to receive a salary increase.

Classification structures and rates of pay

- 5.3. Structures for the classification of NDIA work levels, and your rates of pay, are set out in the salary tables in Appendix A of this Agreement.
- 5.4. Transferring employees will be transitioned into this classification structure from the date this Agreement begins to apply to them and according to the following guidelines:
 - transferring employees will remain at the APS classification level that is applicable to their role/work
 - transferring employees whose substantive salaries fall within the NDIA salary range for the relevant classification will have their substantive salaries adjusted upwards to align to the nearest pay point listed in the salary tables in Appendix A of this Agreement for their classification level
 - transferring employees whose substantive salaries exceed the top pay point of the appropriate NDIA classification will be subject to salary maintenance and salary maintenance lump sum arrangements specified below in clauses 5.15- 5.18.

How you will be paid

5.5. You will be paid fortnightly in arrears by electronic funds transfer to an Australian Bank/Financial Institution account of your choice.

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Part 5 – Remuneration

Salary advancement

- 5.6. All ongoing employees who are not at the top pay point of their substantive classification will have their eligibility for salary advancement assessed each year on 31 July.
- 5.7. Employees who meet the eligibility requirements specified in clause 5.8 will be entitled to advance to the next pay point of their substantive classification effective from a common salary advancement date of 1 September each year.
- 5.8. You will be eligible for salary advancement, subject to:
 - having a performance plan in place that continues to apply into the following assessment period;
 - having completed at least one performance plan in the current assessment period, with the exception of employees who completed probation later than 31 March in the assessment period;
 - for new employees, successful completion of the probation process;
 - effectively meeting or exceeding requirements as specified within the performance framework;
 - performance of duties for at least six months within the 12 month assessment period; and
 - not being subject to a current performance improvement process.

Salary advancement for ongoing employees on higher duties allowance

5.9.

If at 31 July you are performing higher duties, and have performed these at the same or higher classification and pay point for an aggregate period of 12 months or more within the

past 24 months, you will receive salary advancement on the common salary advancement date of 1 September each year subject to:

- having a performance plan in place that continues to apply into the following assessment period;
- having completed at least one performance plan in the current assessment period, with the exception of employees who completed probation later than 31 March in the assessment period;

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Part 5 – Remuneration

c. effectively meeting or exceeding requirements as specified within the performance framework;

- performance of duties for at least six months within the 12 month assessment period; and
- not being subject to a current performance improvement process.

Salary advancement for non-ongoing employees

5.10. If you are a non-ongoing employee with continuous employment of more than 12 months in duration, and you are not at the top of your salary range, you are eligible for salary advancement. This will be assessed on the anniversary of your commencement at your classification and pay point subject to:

- having a performance plan in place that continues to apply into the following assessment period;
- having completed at least one performance plan in your current assessment period;
- effectively meeting or exceeding requirements as specified within the performance framework;
- performance of duties for at least six months within your 12 month assessment period; and
- not being subject to a current performance improvement process.

Payment of salary

5.11. Your fortnightly rate of pay will be ascertained by applying the following formula:
Fortnightly pay = annual salary x 12 ÷ 313

Salary on engagement, promotion, assignment of duties

5.12. Your salary on engagement, either ongoing or non-ongoing, promotion and assignment of duties (including movement from another APS Agency) will be at the minimum pay point for the relevant classification unless:

- the CEO approves payment at a higher pay point within the classification range, with consideration to your relevant experience, skills and qualifications
- you are an APS employee and transfer from another agency, and your current salary exceeds the maximum of the NDIA salary range for the relevant

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Part 5 – Remuneration

classification, the CEO will, unless exceptional circumstances exist, approve continued payment at your previous substantive salary until you can be transferred to the NDIA salary range without disadvantage

c. you are an APS employee and transfer from another agency, and your current salary exceeds a relevant NDIA pay point, but is below the maximum of the NDIA salary range for the relevant classification, you will transfer to the next pay point for that classification

d. your salary increase on promotion to that minimum pay point is less than \$1500 in which case you will be placed on the second pay point.

Salary maintenance

- 5.13. If you transfer to the NDIA from a state or territory entity under the provisions of a bilateral agreement between the state or territory and the Commonwealth, the CEO will, unless exceptional circumstances exist, approve continued payment of your previous substantive salary. This would apply if your salary on date of appointment is above the top pay point of the appropriate NDIA classification, and where your salary will fall within the top pay point during the life of this Agreement.
- 5.14. Where it has been determined appropriate to assign you to duties at a lower classification on a temporary or ongoing basis due to specific circumstances, you will transfer to the top pay point for the lower classification unless otherwise determined by the CEO.

Salary maintenance lump sum

- 5.15. If you are in receipt of a salary above the top of the pay point for your classification during the life of this Agreement you will not be eligible for the relevant salary increases (clause 5.1). You will remain on your current salary and will be eligible for a separate lump sum payment on commencement of the Agreement, 12 months after commencement and/or 24 months after commencement.
- 5.16. During the life of this Agreement, where the NDIA top pay point for your classification level meets or exceeds your maintained salary, the lump sum payment would no longer be payable to you.

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Part 5 – Remuneration

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- 5.17. All lump sum payments will be calculated as two per cent of the top pay point for your classification level as specified in Appendix A, and paid at the same time as the general salary increases (clause 5.1).
 - 5.18. These payments will not count as salary for any purpose.

Casual loading

5.19. If you are non-ongoing and engaged for duties that are irregular or intermittent (casual employee) you will receive a loading of 20 per cent of salary in lieu of paid leave entitlements except long service leave, and public holidays not rostered to work.

Higher duties allowance (HDA)

- 5.20. You may be requested to perform temporarily all or part of the duties of a position at a higher classification.
- 5.21. The minimum period of temporary reassignment that can attract payment of HDA is one week, unless the CEO determines there are special circumstances associated with the duties to be performed for a shorter period.
- 5.22. If you are performing all of the duties of a position at a higher classification you will be paid HDA equal to the difference between your usual salary and the base salary of the higher classification.
- 5.23. Notwithstanding clause 5.22, where your HDA increase to the minimum salary rate for the higher classification is less than \$1500 you will be placed on the second pay point in the higher classification range.

- 5.24. If you are performing part of the duties of a position at a higher classification you will receive payment at a rate determined by the CEO.

Superannuation

- 5.25. The NDIA will make compulsory employer contributions as required by the applicable legislation and fund requirements.
- 5.26. The NDIA's default superannuation fund for new employees is the Public Sector Superannuation Accumulation Plan (PSSap). The NDIA will provide employer

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Part 5 – Remuneration

superannuation contributions to members of the PSSap of no less than 15.4 per cent of your fortnightly contribution salary.

- 5.27. Existing Public Sector Superannuation (PSS) and Commonwealth Superannuation Scheme (CSS) arrangements will continue in accordance with the relevant legislation and requirements.
- 5.28. Where you exercise superannuation choice, the NDIA will provide employer superannuation contributions of no less than 15.4 per cent of your fortnightly contribution salary.
- 5.29. Employer contributions will not be reduced by any other contributions made through salary packaging arrangements. This clause does not apply where a superannuation fund cannot accept employer superannuation contributions.
- 5.30. Employer superannuation contributions will be paid during periods of paid and unpaid parental leave (including maternity, parental, adoption and foster care leave) for periods of leave to a maximum of 52 weeks, or as otherwise provided in legislation.
- 5.31. The CEO may choose to limit superannuation choice to complying superannuation funds that allow employee and/or employer contributions to be paid through fortnightly electronic funds transfer using a file generated by the NDIA's payroll system.
- 5.32. Any fees applied by a chosen fund associated with the administration of superannuation contributions will be borne by you.

Superannuation allowance

- 5.33. The CEO may pay a superannuation allowance where the NDIA is no longer permitted to pay employer contributions to your superannuation fund (due to your age).
- 5.34. The superannuation allowance will be equivalent to the amount that the NDIA would have paid if you were entitled to receive employer superannuation contributions, less any contribution amount accepted to your superannuation fund.

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Part 5 – Remuneration

Salary packaging

- 5.35. If you are an ongoing or non-ongoing employee with an initial contract of at least three months you will have access to salary packaging. Further information can be found in the guide produced by the NDIA's salary packaging provider/s.
- 5.36. Where you take up the option of salary packaging, the arrangements will not reduce your salary for the calculation of superannuation or any other purpose.
- 5.37. You will meet the costs of any salary packaging arrangement, any fringe benefits tax and administrative costs incurred by the NDIA.

Supported salary rates

5.38. The CEO may approve supported wage rates as set out in Appendix B to apply to an employee with disability who is eligible for consideration under the supported wage system.

RECOVER OF NDIA DEBT

Additional matters

6.33. The CEO may determine that it is appropriate to pay you an allowance or reimbursement for reasonable expenses incurred in the course of your employment.

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Part 6 – Allowances and reimbursements

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- 6.34. Remuneration, salary-related and other debts that you or a former employee owes to the NDIA will be recovered as a debt to the Commonwealth in accordance with the FWA and the NDIA Accountable Authority Instruction.

Flexible working arrangements (including part-time)

- 8.17. The NDIA understands the need to balance your working life with other commitments, including family and the community. This is supported through the provision of a range of flexible working arrangements. When applying these arrangements and other employment conditions you and your manager will consider the business needs and any effect on other employees to ensure equitable outcomes. For further information, see the policies on hours of duty and flexible working arrangements.
- 8.18. Flexible working arrangements for certain circumstances will be provided for in accordance with Section 65 of the FWA.

Shift penalty rates

Shift	Penalty Rate
Any part of a shift falls between 7:00pm and 7:00am Monday to Friday	
Shifts fall wholly within 7:00pm and 7:00am Monday to Friday for at least four continuous weeks	
Any part of a shift falls between midnight Friday and midnight Saturday	
Any part of a shift falls between midnight Saturday and midnight Sunday*	
Any part of a shift falls on a Public Holiday (except in South Australia, if the public holiday is a public holiday solely because it is a Sunday)*	
15 per cent	30 per cent
50 per cent	100 per cent
150 per cent	



*Note: In South Australia, the *Holidays Act 1910 (SA)* provides that Sundays are a public holiday. The public holiday rate will not apply to work undertaken in South Australia if the public holiday is a public holiday solely because it is a Sunday.

TPD

Termination of employment on invalidity grounds

9.26. If you are a member of a Commonwealth Defined Benefits Superannuation scheme the NDIA will not terminate your employment on invalidity grounds before your paid personal/carer's leave credits are exhausted, unless provided by legislation and the superannuation fund has issued a certificate stating you are entitled to payment of Total and Permanent Invalidity (TPI) payments/pension.

STAT DEC MEDIVCAL

Medical certificates and supporting documentation

9.31. Medical certificates and/or relevant documentation from registered health practitioners and registered health providers will be accepted. Where it is not reasonably practicable to provide a certificate, the CEO may accept a statutory declaration as acceptable supporting documentation.

LEAVE

Sabbatical leave

9.68. The CEO may grant you sabbatical leave. This is a flexible arrangement consisting of a four year work period followed by a one year sabbatical leave period, with salary spread over the five years at a rate of 80 per cent.

Miscellaneous leave

- 9.69. The CEO may grant you leave, either with or without pay, to count as service or not to count as service, and subject to certain conditions, in circumstances not provided for elsewhere in this Agreement for a purpose that the CEO considers to be in the interests of the NDIA, such as but not limited to:
 - attend to matters relating to family and domestic violence;
 - short term special/emergency situations; and/or
 - catastrophic emergency or natural disaster event.
- 9.70. Miscellaneous leave with pay will be provided if you engage in community service activities including jury service and emergency service response activities as defined in the FWA. Further information can be found in the policy on miscellaneous leave and the associated fact sheet.

DIVERSITY & DISABILITY

Diversity

10.6. The NDIA will support diversity in the workplace that is reflective of the diversity of the Australian community. Further information can be found within the inclusion and diversity framework. The NDIA will provide a network of trained Peer Support Officers to support you and managers in responding to workplace bullying and harassment.

Supporting employees with disability

10.7. The NDIA will:

- implement targeted strategies to improve the attraction, support and retention of employees with disability, such as access to flexible working arrangements and suitable workplace adjustments;

- maintain an advisory committee representing employees with disability; and
- provide additional leave for study purposes for employees with disability when undertaking approved study.

Redundancy benefit

- 11.18. An employee who elects for redundancy with a redundancy benefit and whose employment is terminated by the CEO under section 29 of the PSA on the grounds that they are excess to requirements, is entitled to payment of a redundancy benefit of an amount equal to two weeks salary for each completed year of continuous service, plus a pro-rata payment for completed months of service since the last completed year of service, subject to any minimum amount the employee is entitled to under the NES.
- 11.19. The minimum payment will be four weeks salary and the maximum will be 48 weeks salary.
-